THE LEGAL JOURNEY

1965
Women **not to be terminated from service upon marriage** (Bombay Labour Union vs. International Franchise Pvt Ltd)

1971
Right to abort between 20th and 24th week of pregnancy, if foetal development is abnormal or likely to harm mother

1986
Equal right of share for daughter in parents' property among Christians

1990
The Supreme Court ruled **even "a woman of easy virtue" is entitled to privacy** and no one can invade it

1991
Women **exempted from sharing personal details** (conception history, menstrual cycle) with prospective employers. LIC had such a column.

1994
Prenatal sex determination banned to stop female foeticide; 2003 amendment enforces law

1997
SC issues the **Vishaka Guidelines** to prevent sexual harassment of women at workplace. Also, adult women entitled to marry and live with anyone of choice.

2005
Domestic Violence Act goes beyond Section 498(a) of IPC, 1983, in arming women against abuse even in live-in relationships

2015
Husband to bear expenses of a divorced wife and children

2017
Triple talaq unconstitutional; prostitution decriminalised; transgenders to be treated as a separate gender category; same-sex marriage and relationships decriminalised



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to fight for gender freedom—75 years later, those battles continue to be waged. Both in the personal domain, and with the big, bad world outside. Domestic violence and marital rape scarred the private realm. In expanding circles from there, coparcenary rights with brothers or the right to maintenance after being dumped had to be wrested. Everyday discriminations, subtle and gross, at the workplace had to be defined as a crime. The law played the role of a liberator, but tragically also of a carrier of the old biases and an enforcer of patriarchy.

Women now might be left incredulous by the history. In 1965, despite the mint-fresh Maternity Benefit Act from just four years before, a woman had to approach the court to retain her job after getting married. In 1991, women applying for LIC jobs were made to fill in a column on personal details—did they have painful periods, had they conceived in the past? The law struck that down, but employers even today prefer men—seen to embody productivity minus the 'hassles'. As with so many gender issues—from the ban on dowry to pre-natal sex determination to sexual harassment—even when the law sided with the women, it could do little to change mindsets. ■